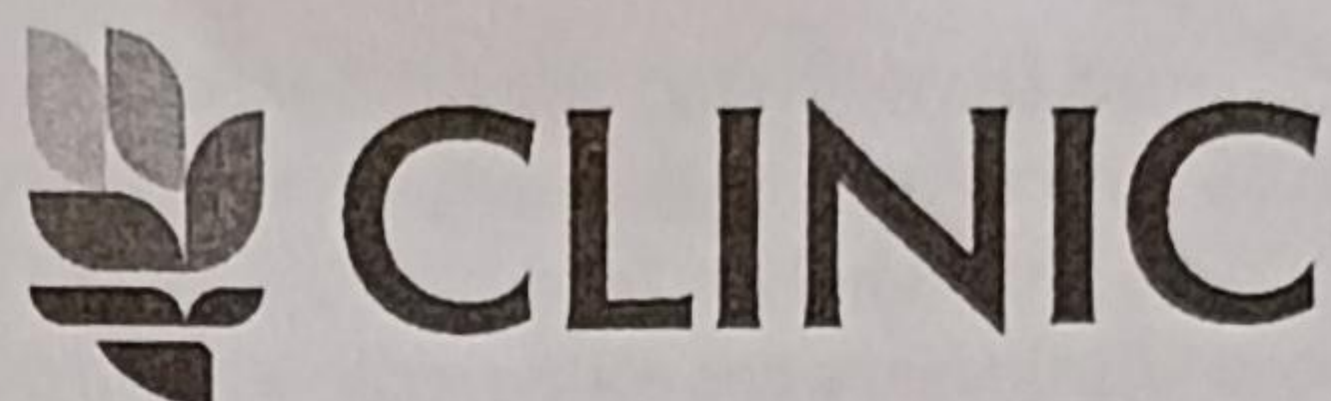




Outsourcing Our Human Rights Obligations:
Tracking the Administration's Use of Bilateral Agreements to Externalize Due Process
Last Updated: March 19, 2026

The Trump administration has ramped up efforts to increase detention and removal, limiting due process to accelerate its mass deportation agenda. A central component of this strategy has been the aggressive use of bilateral and multilateral agreements with foreign governments. Some of these agreements are relatively formal, publicly disclosed, and referred to as **Safe Third Country Agreements (STCAs)** or **Asylum Cooperative Agreements (ACAs)**. These agreements allow the United States to **remove asylum seekers to "cooperating" countries** to seek protection there, **without first receiving a hearing in the United States**. Increasingly, these ACAs are being used to **premit¹ (dismiss without a hearing)** asylum applications already pending in the United States under the Safe Third Country exception to asylum eligibility at INA § 208(a)(2)(A).² **This resource is designed to provide practice guidance to consider in framing your opposition to motions to premit, and an updated ACA impacts table.**

The Trump administration is also utilizing another type of agreement called a third country removal agreement. Unlike the STCA/ACA agreements, these agreements are not necessarily public, and do not appear to follow a specific formal process. Per DHS guidance on processing third country removals, the country of removal does not even have to provide credible diplomatic assurances that the deportee will not be persecuted or tortured there. Instead, the agreements involve countries accepting third-country deportees from the United States when the United States cannot legally or practically return people with final orders of removal to their countries of origin.³ This has included stateless people, people without travel documentation or whose home countries refuse to accept deportees, and **even individuals granted certain relief** that does not lead to permanent residence, such as **Withholding of Removal** or **protections under the Convention Against Torture (CAT)**. In some instances, the cooperating country detains these deportees, or repatriates them to their country of origin, resulting in patterns of "chain refoulment." These transfers raise serious

¹ ACAs are one of several mechanisms this administration is using to premit claims for asylum and other protection-based relief. CLINIC has issued separate guidance on avoiding prepermission based on incomplete applications; see other related resources from Human Rights First and NIPNLG. See the CGRS landing page on asylum prepermission for more information.

² The Safe Third Country exception, involving diplomatic agreements between the United States and other countries to transfer protection claims, is different from the Firm Resettlement Bar, which applies to individual applicants for asylum who have already been offered or received status in another safe country.

³ Some reports indicate that the administration is not attempting to remove individuals to their home countries, which would have accepted them, before removing them to a third country.

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concerns, particularly where they may occur in exchange for U.S. payments, or financial incentives. The outcomes of these transfers, and whether deportees are afforded due process or basic human rights, are not always clear. On April 18, 2025, the U.S. District Court for the District of Massachusetts issued a preliminary injunction in D.V.D. v. U.S. Department of Homeland Security prohibiting DHS from removing noncitizens to any third country, including South Sudan, without first providing written notice and a meaningful opportunity to raise fear-based claims related to that country. 1:25-cv-10676, (D. Mass.). In June 2025, the Supreme Court stayed that lower court's injunction, clearing the way for DHS to proceed with rapid third-country deportations while the appeal proceeded. In late February 2026, the District Court issued an order on the merits dissolving the stay, dismissing some counts, and granting summary judgment against the remaining defendants as to the remaining counts. In doing so, the court reaffirmed that class members **must receive notice and a meaningful opportunity to raise fear-based objections before any third-country removal**. Although that decision does not address ACAs, its reasoning on the procedural and statutory limits governing third country removals offers a potentially useful analogue when evaluating ACA-based transfers. The government has appealed the District Court's February 2026 order and the United States Court of Appeals for the First Circuit has granted an emergency stay, allowing the government to continue to conduct swift third country removals while litigation continues.

As the administration expands its use of these agreements, systematic monitoring has become increasingly critical. The table below will be updated to reflect ACAs and their impacts on asylum pretermission. Human Rights First and Refugees International are tracking and publishing details about bilateral agreements, including third country deportation agreements, at the Third Country Deportation Watch site with an updated companion chart.

Practice Tips on Opposing Motions to Pretermission Based on ACA/STCA

First, don't assume DHS is correct that an asserted ACA is in effect, or applies to your client. Instead, consider the following:

- 1) **Object to application of vague, unpublished, or partially implemented ACAs.**
 - Many ACAs, particularly those revived or newly negotiated, include **uncertain, incomplete, or unimplemented terms**.
 - Since DHS rarely offers evidence of actual implementation, practitioners should argue:
 - **DHS cannot meet its burden** where ACA terms have not been fulfilled.
 - **The ACA is too vague, inoperative, or not yet in force** to apply.
- 2) **Object where DHS cannot meet its initial burden of proving ACA applicability to your specific client.**
 - DHS carries the **initial burden** of demonstrating an ACA's applicability to a given respondent, when moving to pretermite based on an ACA under INA § 208(a)(2)(A) and 8 C.F.R. § 1240.11(h)(2). Practitioners should challenge any motion where DHS does not meet this threshold.
 - Although the Board of Immigration Appeals (BIA) in Matter of C-I-G-M- & L-V-S-G-, 29 I&N Dec. 291 (BIA 2025) asserted in a footnote that DHS need not prove that a specific receiving country has agreed to accept a specific respondent, DHS

must still prove that ACA *itself* applies to the respondent. Practitioners should object to any DHS motion that relies on conclusory statements or boilerplate language lacking respondent-specific evidentiary support.

- Under the INA, a person may be removed to a third country only if that government “will accept the alien into that country.”⁴ For practitioners in the Ninth Circuit, *Himri v. Ashcroft* remains controlling: the government may not designate a third country for removal without evidence that the receiving country will actually accept the individual. 378 F.3d 932, 939–40 (9th Cir. 2004). Even outside the Ninth Circuit, practitioners should raise and preserve this statutory acceptance argument for appeal, given the discrepancy between the statute itself and the Board’s dicta in *Matter of C-I-G-M- & L-V-S-G-*, 29 I&N Dec. 291 (BIA 2025).
- Object to application of an ACA with any country that DHS did not designate as a country of removal in the context of pleadings.
- Familiarize yourself with the terms of ACAs, and object to any motion to pretermite based on an ACA under which your client is not clearly eligible for transfer for subsequent process. The chart below will help you to locate specific ACA terms and issues.
 - **Key initial considerations:** As in any case in removal proceedings, carefully review the charging documents, including the Notice to Appear (NTA) and Form I-213 (Record of Deportable/Inadmissible Alien), for any inaccuracies or errors, especially before making any pleadings. Errors in these documents, particularly the respondent’s date of entry or country of nationality, can undermine DHS’s ACA theory.
 - When filing a new Form I-589, consider submitting written pleadings in advance. This helps ensure the issues are clearly framed, allows identification of any factual disputes, and avoids rushed ACA litigation at a Master Calendar Hearing without full briefing or evidentiary development.

3) Object where DHS has not shown evidence that any relevant numeric caps and capacity limits have not been exceeded, precluding application of an ACA to your client.

- Where an ACA contains (or may include) a numeric cap or anticipated transfer limits, practitioners should require DHS to show:
 - Whether a cap has been reached,
 - How many prior pretermission motions under the same ACA have been granted, and
 - How DHS is tracking limits.
- CGRS is tracking pretermission trends across cases for which they have received requests for technical assistance; this data is not exhaustive of all filed motions to pretermite based on ACAs, and is not predictive, but it indicates that motions to pretermite to given countries may exceed numeric limits. As numeric caps on specific ACAs become public, this resource may support opposition.

⁴ INA § 241(b)(2)(E)(vii), 8 U.S.C. § 1231(b)(2)(E)(vii).

- Practitioners should object to pretermission where DHS cannot provide reasonable assurance that the numeric scope of the ACA has not been exceeded, or that DHS is accurately tracking the scope of applicability.
- 4) **Object to DHS's inconsistent, arbitrary ACA designations.**
- Note how recent practice reflects troubling patterns, supporting argument that DHS's designation is arbitrary, unsupported, and fails the threshold applicability requirement:
 - Use of ACAs against individuals outside the geographic scope of the agreements (e.g., African clients linked to the Uganda ACA solely based on continent of origin).
 - Stacking multiple ACAs in a single motion.
 - Withdrawing reliance on the one ACA when numerical caps are raised – then substituting another ACA.
 - Attempting pretermission where country acceptance is ultimately unobtainable, improperly delaying resolution and leading to post-order reopening.
 - DHS, or immigration judges (IJs) themselves, making vague assertions of “any other” ACA that “may” apply.
- 5) **Object to improper application of ACAs based on date-of-entry, including any retroactivity challenges.**
- Be especially attentive to the respondent's **date of entry**.
 - Object strongly to pretermission if your client entered the United States **prior to Nov. 19, 2019**, the effective date of the interim final rule Implementing Bilateral and Multilateral Asylum Cooperative Agreements Under the Immigration and Nationality Act. The STCAs below apply only to asylum seekers who entered the United States on or after that date, except for the U.S.-Canada agreement, which is governed by a separate, pre-existing regulatory framework.
 - Object to preserve the issue if your client entered the United States **on or after Nov. 19, 2019, but before the date of implementation** for any cited ACA. The BIA ruled in Matter of C-I-G-M- & L-V-S-G- that ACAs may apply retroactively to these individuals, but this holding is likely **to be challenged on appeal, so preserve objections for clients in this situation**.
 - Emphasize that after the Biden administration terminated all 2019 ACAs, there were no valid ACAs in effect between roughly 2021–2025, and revived ACAs should not apply retroactively to entries during this “ACA vacuum period.”
- 6) **Object assertively to procedural defects: untimeliness, insufficient notice, lack of acceptance evidence.**
- DHS pretermission motions commonly suffer from **significant procedural flaws**. Practitioners should object on all applicable grounds, including:
 - **Untimeliness:** DHS frequently files motions well beyond IJ deadlines or immediately before an individual hearing, depriving respondents of a meaningful response opportunity. Familiarize yourself with the Immigration Court Practice Manual (ICPM), 2.1(b) and note any superseding deadlines imposed by the IJ.

- **Compound Motions:** Object to compound motions combining two separate requests, including motions that assert applicability of more than one ACA, per the ICPM, 4.4. Assert that where DHS moves to pretermite based on more than one ACA, respondent and counsel require additional time to prepare and respond *as to each country*.
- **Lack of good faith effort to ascertain opposing party position:** DHS, like respondent's counsel, is required to ascertain the opposing party's position on the motion prior to filing, including that position or explaining failure to obtain it in the motion itself, per the ICPM, 4.2(i).
- The IJ's management of the adjudication may also involve due process issues: **ACA pretermission proceedings must comply with longstanding due process requirements guaranteeing a fair and meaningful opportunity to be heard**, as recognized in *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976); *Reno v. Flores*, 507 U.S. 292, 306 (1993); and *Ng Fung Ho v. White*, 259 U.S. 276, 282 (1922). INA § 240(b)(4)(A)-(B) likewise guarantees respondents a reasonable opportunity to examine the evidence against them and to present their own, and EOIR PM 25-33 requires IJs to conduct hearings neutrally and impartially.
 - *Matter of C-I-G-M- & L-V-S-G-* holds that respondents must be provided a reasonable opportunity to meet their evidentiary burden of establishing — by a preponderance of the evidence — that they would be more likely than not to be persecuted or tortured in the designated ACA country. A "reasonable opportunity" necessarily includes adequate time to obtain and submit evidence such as:
 - **Country-conditions evidence specific to the ACA country;**
 - Affidavits or declarations from relevant witnesses;
 - **Expert analyses or reports addressing persecution or torture risks;** and
 - Documentation linking the respondent's identity, characteristics, or past harm to conditions in the ACA country.
 - Any IJ action that limits time, restricts individualized evidence, or otherwise prevents full development of ACA-country-specific evidence may undermine this required "reasonable opportunity," and practitioners may object to preserve a due process concern.

Second, make client-specific arguments and build your record for appeal. Remember that your client can base their appeal only on evidence and arguments raised before the IJ; pretermission makes it more likely that your client will need to appeal, **AND** reduces the time to build their record.

Consider the following:

1) Understand what *C-I-G-M-* actually requires.

- If DHS can meet their initial burden, be prepared to respond substantively at master calendar hearings (MCH) or during individual hearings. Under *Matter of C-I-G-M- & L-V-S-G-*, IJs must provide minimal due process to determine whether the Safe Third Country bar to asylum eligibility applies *prior to and separate from* hearing the merits of the case. The BIA held:

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- The IJ must decide whether the ACA bar applies before adjudicating asylum,
 - And must then determine whether the respondent will face persecution or torture in the ACA country under a more-likely-than-not standard.
 - But the decision does not authorize summary dismissal. Practitioners should argue:
 - The IJ must provide due process, including notice and an opportunity to present individualized evidence.
 - The ACA bar determination requires a factual showing, making paper-only adjudication inappropriate.
 - Matters should not be decided solely at MCH unless all parties have meaningful opportunity to develop the record.
- 2) Build a robust record of individualized fear for the ACA country.
- To oppose pretermission and build a strong evidentiary record for appeal:
 - Assert reasonable fear of persecution or torture in the ACA country on the record.
 - Submit evidence linking country conditions to your client's specific, individualized circumstances (e.g., gender-based violence, LGBTQ+ targeting, political profile, ethnicity, disability, prior harm in transit country).
 - Treat the ACA analysis as a mini withholding/CAT adjudication focused on the ACA country.
- 3) Build a robust individualized record to preserve statutory "full and fair process" arguments under INA § 208(a)(2)(A).
- Although the BIA in *C-I-G-M* held that IJs lack authority to determine whether an ACA-designated country provides a full and fair asylum process, practitioners should squarely raise and preserve this issue for appellate review. Under INA § 208(a)(2)(A), the Safe Third Country exception applies only where the receiving country both:
 - Will not threaten the applicant's life or freedom on a protected ground, and
 - Provides the applicant with access to a "full and fair procedure" for determining asylum or equivalent protection.
 - Due to the tension between the statute itself and the dicta in *C-I-G-M*, practitioners should:
 - Include evidence that the client would be unable to access a full and fair asylum process in the designated ACA country, expressly and clearly stating that this is offered to preserve the issue for appeal.
 - Argue that the regulation (8 C.F.R. § 1240.11(h)) is ultra vires (outside the law), because it impermissibly limits the statutory requirements Congress embedded in INA § 208(a)(2)(A).
 - For further potential arguments, practitioners should review the February 2026 merits order in *D.V.D. v. DHS* and read the Supreme Court's opinion in *Jama v. Immigration & Customs Enforcement*, 543 U.S. 335 (2005). The District Court found DHS's third-country removal policy unlawful for disregarding the mandatory removal sequence required by INA § 241, and the Supreme Court confirms in *Jama* that DHS must follow those statutory steps in order. Together, these opinions may support arguments that DHS cannot rely on an ACA to bypass the removal sequence Congress established.

4) Preserve the statutory public-interest exception under INA § 208(a)(2)(A):

- Assert that it is in the public interest for your client to receive asylum in the United States under the public-interest exception contained in INA § 208(a)(2)(A) clearly and on the record, even though the IJ will most likely decline to adjudicate it. The statute provides that the safe-third-country bar does not apply when "the Attorney General finds that it is in the public interest for the alien to receive asylum in the United States." Nothing in the statute itself assigns this power exclusively to DHS or strips IJs of authority to consider public-interest arguments.
 - Despite the statutory text, the BIA in *Matter of C-I-G-M- & L-V-S-G* held that IJs lack authority to make this determination. The Board reasoned that § 208(a)(2)(A) "reserves to the Secretary [of Homeland Security] or her delegates the determination whether it is in the public interest for the alien to receive asylum in the United States," citing 8 C.F.R. § 1240.11(h)(3). Crucially, the Board's conclusion relies on non-binding commentary in the 2019 ACA Interim Final Rule—not on the statutory text. The ACA preamble states that DHS and the attorney general will make these threshold determinations "separate and apart from the regulatory provisions" governing IJ proceedings. 84 Fed. Reg. 63997, 64002 (Nov. 19, 2019). Consider preserving the argument, explaining that the statutory public-interest exception remains binding law and should not be narrowed by regulation or by commentary in the Federal Register preamble

5) Object to incorrect claims of withholding/CAT ineligibility: **The ACA/Safe Third Country bar in INA § 208(a)(2)(A) applies only to asylum. Any regulation purporting to extend ACA ineligibility to withholding or CAT protection (e.g., 8 C.F.R. § 1240.11(h)) is ultra vires because it exceeds Congress's statutory limits.**

Lastly, be prepared to appeal any adverse decisions. Consider:

- 1) Expect radically shortened BIA appeal deadlines and discretionary merits review under the new BIA interim final rule, (IFR) set to go into effect March 9, 2026, depending on pending litigation. The IFR allows summary dismissal of most appeals and imposes accelerated timelines, and ACA-based premissions fall under a strict 10-day deadline, meaning appeals of ACA/STCA prepermission denials must be filed within 10 days of the IJ's decision. Practitioners should be ready to file an EOIR-26 immediately and to their best to clearly identify all relevant issues in the Notice of Appeal. See CLINIC's Field Alert for details on the IFR. For CLINIC Affiliates, a redacted Notice of Appeal based on a premitted case is also available for reference under the "affiliate-only resources" on the Responding to the Second Trump Administration webpage. The National Immigrant Justice Center (NIJC) also shared a Sample Notice of Appeal of a Motion to Premit based on an ACA that practitioners are encouraged to review.

The Center for Gender and Refugee Studies (CGRS) has released a practice advisory on responding to ACAs, which is available, along with opposition templates, to practitioners who register with CGRS and make case-specific requests for technical assistance.

The following table lists known ACA agreements that impact immigrants to the United States, current as of the last update of this resource. Because this issue is evolving rapidly and may involve non-public agreements, use this table as a starting point for your own research on specific legal issues.

Safe Third Country Agreement (STCA) – Asylum Cooperative Agreement (ACA) Impacts Table			
Country	Agreement Parameters/Exclusions	In Effect?	Impacts/Opposition
Belize	Unknown. While the agreement has been published, it states that it will only be operationalized after further. - The agreement <u>applies only to nationals of Central American countries except Guatemala</u>, and to <u>CARICOM</u> nations, which include Haiti. - UCs are exempted. - Nationals of Belize, or stateless persons whose habitual residence has been Belize, are exempted, Belize retains complete discretion to accept or decline proposed transfers, and may consider, "among other factors, the professional skills and criminal history" of a proposed transferee. - Belize officials <u>report</u> an absolute veto over transfers, with restrictions on nationalities, a cap on transferees, and comprehensive security screens.	It is unclear whether necessary steps have been completed for the agreement to be "in force" or "operationalized." The <u>agreement itself</u>, signed as of Oct. 20, 2025, was <u>published in the Federal Register</u> on March 12, 2026. By its own terms, it not in force until a subsequent exchange of notes indicating domestic steps have been completed in each part country, and it will not be operationalized until subsequent operating procedures are established by the countries. The agreement is subject to the availability of funds and technical capacity of each party. Once implemented, the agreement lasts two years but may be renewed, or terminated by either party-state.	Unknown. Practitioners should strongly object to any pretermission motion based on an ACA with undefined or unavailable application criteria, or which is not clearly in force. Practitioners may consider arguing that DHS is unable to show that this agreement is actually in force/operational given terms requiring additional domestic steps and a subsequent exchange of notes to enter <i>into force</i>, and an additional agreement on operating procedures to become operational. Further, the fact that the agreement is subject to the availability of funds and technical capacity, and that either party may terminate at any time, mean it is not clearly in effect. Further, Practitioners may consider arguing that DHS cannot show that the agreement applied to a given respondent. A required operating procedures agreement is not public, so unknown/unestablished terms may exist, including possible numeric caps. Because Belize retains complete authority to decline transfers, considering factors that specifically include, "among other factors, the professional skills or criminal history of an individual proposed for transfer," it is not clear that this ACA applies to any individual without an individualized determination by the government of Belize.

			Practitioners must carefully review the ACA and make any argument that a given respondent is excluded.
Ecuador	Unknown. The agreement states that the parties will define eligibility criteria and any bilateral assistance necessary to implement the agreement <i>in a subsequent instrument</i>. It is unknown whether they have completed that step; criteria are not public. • Does not apply to unaccompanied minors. • There are <u>reports that</u> Ecuador imposed a 300-person cap on transfers. • The United States and Ecuador retain "complete discretion" to propose and consider acceptance (in whole or part) of transfers, respectively.	The agreement became effective via an exchange of <u>diplomatic notes</u> on July 23, 2025, as published on Nov. 17, 2025 in the <u>Federal Register</u>. However, the published agreement does not include terms. The agreement itself includes provisions that appear to require additional internal governmental action before the agreement can be in force. Either party may terminate, suspend, or amend the agreement in writing.	DHS has moved to pretermitt on the basis of this ACA in an unknown number of cases. Practitioners should strongly object to any pretermittion motion based on an ACA with undefined or unavailable application criteria, or which is not clearly in force. Practitioners should consider opposing these motions by highlighting DHS' inability to show applicability due to an unknown/unestablished terms in required "subsequent instrument," reported numeric caps and failure to demonstrate that they have not been exceeded, the fact that the agreement is subject to the availability of funds and technical capacity as well as undefined bilateral support, and the fact that either party may terminate at any time, so it is not clearly in effect. As of March 2026, DHS attorneys have reportedly shared that they have been directed to stop moving to pretermitt based on this ACA because the numeric cap has been reached. <u>CGRS data</u>, which is based on their technical assistance cases and is not exhaustive, indicates that the caps have been exceeded. In practice this coincides with an increase of motions to pretermitt on other grounds. See the <u>NIPNLG resource</u> for guidance on opposing pretermittion on other grounds.
Guatemala	• Applies to nationals of Central American countries. • The agreement refers generally to "transfer," with no apparent additional restrictions beyond	The <u>agreement</u> was effective as of the <u>July 15, 2025</u>, publication in the <u>Federal Register</u>. Either party may suspend or terminate the agreement by notifying the	In practice, DHS has moved to pretermitt claims of nationals or habitual residents of Spanish-speaking Latin American countries. Practitioners should strongly object to any pretermittion motion based on an ACA with undefined or unavailable application criteria, or which is not clearly in force.

	vague reference to international obligations and respective laws.	other party in writing 30 days in advance. However, agreement references domestic implementation steps in Guatemala, and it is not clear what they are or whether they have been completed.	Practitioners may argue that DHS is unable to show that this agreement applies as it is not clearly in force given terms requiring additional steps and exchange of notes, and it is overly vague. Further, the Guatemalan government <u>subsequently disputed that the agreement was a STCA</u>, instead characterizing it as a "temporary stop" before return to their home countries. This raises significant concerns about the nature of the vague agreement, and whether prematurely premitting asylum applications on its basis will result in chain refoulment. As of March 2026, DHS attorneys have reportedly shared that they have been directed to stop moving to premit based on this ACA because the numeric cap has been reached. <u>CGRS data</u>, which is based on their technical assistance cases and is not exhaustive, indicates that the caps have been exceeded. In practice this coincides with an increase of motions to premit on other grounds. See the <u>NIPNLG resource</u> for guidance on opposing premission on other grounds.
Honduras	Does not apply to: - Nationals of Honduras; - Stateless habitual residents of Honduras; - Unaccompanied minors; - Those who arrived in the United States with a visa or visa waiver; - Individuals involved in crimes against humanity, drug trafficking, terrorism, human trafficking, smuggling of migrants, child pornography, human rights violations, any other activity linked to illicit activities; or	Entered March 10, 2025, amended as of June 25, 2025, with the exchange of diplomatic notes. <u>Published as of July 8, 2025, in the Federal Register.</u> The <u>agreement</u> will automatically renew after each year for an additional year, subject to notice of intent of non-renewal by either party at least 30 days	In practice, DHS has moved to premit claims of nationals or habitual residents of Spanish-speaking Latin American countries. Practitioners should consider opposing these motions by highlighting DHS' inability to show applicability due to numeric caps and failure to demonstrate that they have not been exceeded, the fact that Honduras retains discretion to accept or reject transfers. Practitioners must carefully review the ACA and make any argument that a given respondent is excluded.

	- Individuals who are the subject of Interpol notifications. - Pending further negotiation, "<u>limited to nationals of Spanish speaking Latin American countries where travel to Honduras does not require a visa, and (2) no more than ten (10) individuals transferred per month, for a total of no more than 240 in the first two-year period.</u>" These terms were not included in the Federal Register and may be subject to change. - Honduras retains discretion of whether to accept transfers.	prior to expiry. Suspension or termination subject to terms.	Advocates should preserve objections regarding access to a full and fair procedure. There are <u>reports</u> that Honduras has accepted Venezuelan and Guatemalan deportees from the United States and returned them to their home countries without opportunity to seek protections, raising serious concerns about chain refoulment. As of March 2026, DHS attorneys have reportedly shared that they have been directed to stop moving to pretermits based on this ACA because the numeric cap has been reached. <u>CGRS data</u>, which is based on their technical assistance cases and is not exhaustive, indicates that the caps have been exceeded. In practice this coincides with an increase of motions to pretermits on other grounds. See the <u>NIPNLG resource</u> for guidance on opposing pretermits on other grounds.
Liberia	Unknown, as necessary operating procedures have not been published and may not be established. - Liberia retains "complete discretion" to "consider accepting or declining" proposed transfers. - Does not apply to unaccompanied minors. - The Parties "shall develop operating procedures to assist with the implementation of this Agreement" which "shall be signed by both parties before any transfers... begin." - The implementation of this Agreement shall be subject to the	The <u>agreement</u> has not been published in the Federal Register, but according to a <u>FOIA report</u>, an agreement entered into force with an exchange of notes at Monrovia Sept. 10, 2025. DOS released the preliminary <u>agreement</u> to its <u>website</u> as of March, 2026, but it is not clearly in effect on its own terms. The government of Liberia has also <u>publicized</u> an agreement pertaining to Kilmar Abrego Garcia.	While the agreement has been published, required operating procedures for implementation have yet to be released, and may not be established. Practitioners should strongly object to any pretermits motion based on an ACA with undefined or unavailable application criteria. Practitioners should consider opposing these motions by highlighting DHS' inability to show applicability due to the fact that a required operating procedures agreement is not public, unknown/unestablished terms may exist including possible numeric caps, Liberia has agreed only to <i>consider</i> accepting transfers, the agreement is subject to the availability of funds and technical capacity, and the fact that either party may terminate at any time, so it is not clearly in effect.

	availability of funds and technical capacity of each Party.		
Paraguay	Unknown, as procedures have not been published and may not be established. • The MOU specifies that it will not apply to unaccompanied minors. • The MOU states that the parties shall develop operating procedures. • The implementation of the MOU shall be subject to the availability of funds and technical capacity of each party. • Language of acceptance is not definite; "CONARE shall consider accepting in whole or in part" a transfer proposal. •	Signed as of Aug. 14, 2025, the <u>Memorandum of Understanding</u> was published in the <u>Federal Register</u> on Dec. 23, 2025. Either party may terminate or suspend the MOU at any time by notice in writing.	While the MOU has been published, operating procedures for implementation have yet to be released, and may not be established. Practitioners should strongly object to any pretermisison motion based on an ACA with undefined or unavailable application criteria. Practitioners should consider opposing these motions by highlighting DHS' inability to show applicability due to the indefinite language of the MOU itself regarding actual acceptance of transfers, unknown/unestablished terms in implementation procedures, including possible numeric caps, the fact that the agreement is subject to the availability of funds and technical capacity, and the fact that either party may terminate at any time, so it is not clearly in effect.
Uganda	• No public nationality restrictions are reflected in the agreement "for Cooperation in the Examination of Protection Requests," although some reports indicate that DHS has withdrawn motions based on Uganda's ACA where the respondent is not from an African country. • Does not apply to unaccompanied minors. • <u>According to Ugandan officials</u>, will not apply to people with	Yes, the agreement was signed on July 29, 2025, and implemented by <u>publication in the Federal Register on Sept. 3, 2025</u>. Either party may suspend or terminate the agreement on written notice to the other party. Amendments are possible on agreement. Per the agreement, the parties shall develop	In addition to the ACA, Uganda is also apparently accepting Third Country Removals. Subsequent "operating procedures" contemplated in the agreement have not been made public, although DHS has withdrawn some motions to pretermitt applications of non-African asylum seekers, possibly due to reported terms restricting application to nationals of African countries. Practitioners should strongly object to any pretermisison motion based on an ACA with undefined or unavailable application criteria. Practitioners should consider opposing these motions by highlighting DHS' inability to show applicability due to an unknown/unestablished terms in required "operating

	criminal records, although that is not specified in the published agreement. • The implementation of the agreement is explicitly subject to the availability of funds and technical capacity of each party. • Uganda retains complete discretion over whether to accept transfers and has <u>stated</u> that they prefer to accept individuals from African countries.	operating procedures to assist with implementation. Under the agreement, the parties "shall determine a procedure" to handle protection claims, but it is not clear that any such procedure currently exists.	procedures" and reported restrictions outside the published agreement, the fact that the agreement is subject to the availability of funds and technical capacity of the parties, and that the agreement can be terminated at any time by either party. Statements of Ugandan officials and external reporting indicate that the agreement may not be in effect given a lack of "[available] funds and technical capacity." As of Dec. 4, 2025, Ugandan officials have reportedly stated <u>the country will stop granting refugee status</u> for arrivals from countries "not experiencing war," especially those from Eritrea, Somalia and Ethiopia, blaming aid cuts and funding shortfalls. UNHCR has <u>reported</u> severe budget cuts undermining capacities in countries including Uganda. On Aug. 20, 2025, between the signing of the agreement and its publication in the Federal Register, a Senior Ugandan official <u>stated that Uganda had not agreed to accept deportees</u> from the United States, and that the country lacked "facilities and infrastructure to accommodate such illegal immigrants." The Minister of Foreign Affairs has reportedly stated, as of February 2026, that Uganda is not accepting <i>any</i> asylum seekers under the agreement, and that no operational framework exists. Practitioners should consider arguing that the <u>Uganda Refugee Act of 2006, Section 35</u>, which prohibits <u>refugees in Uganda from engaging in political activities there, including against their country of origin, is inconsistent with a respondent's rights, particularly in political opinion claims.</u> Advocates should preserve objections regarding access to a full and fair procedure. In addition to the above, under the agreement, the parties "shall determine a procedure" to handle protection claims, but it is not clear that any such procedure currently exists.
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Canada*	Refugee claimants generally must seek protection in the first party-state they arrive in; applies to those seeking entry to Canada from the United States, or vice versa. • Exceptions: U.S. citizens or stateless habitual residents of the United States seeking protection from the United States. Other <u>exceptions</u>: Family member/unity; unaccompanied minors; those who hold documents to enter or live/work in Canada; public interest exceptions.	Yes. Originally implemented in 2002, the parties implemented 2022 amendments extending the STCA across the entire land border, including international waterways, in a <u>2023 Federal Register</u> publication.	*This agreement was entered in 2002, and the Nov. 19, 2019, implementation rule date does not limit the application of this STCA. <u>Applies to individuals crossing the U.S.-Canada Border.</u>
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